

Neonatal Care Pay and Leave

1. Overview

You and your partner may be able to get paid time off work if your newborn baby is premature or sick and needs neonatal care.

This guide is also available [in Welsh \(Cymraeg\) \(/tal-absenoldeb-gofal-newyddenedigol\)](#).

‘Neonatal care’ is the name given to care for newborn babies which starts in the first 28 days after birth. This may be for:

- hospital care
- medical care after leaving hospital - this must be under a consultant and include ongoing visits or checks arranged by the hospital where your baby was treated
- palliative or end of life care

You may be able to get:

- Neonatal Care Leave
- Statutory Neonatal Care Pay

You can get one week’s leave for every 7 full and continuous days your baby is in neonatal care, for up to 12 weeks.

You get Neonatal Care Pay and Leave in addition to other parental pay and leave entitlements. If you’re already on maternity leave or adoption leave, Neonatal Care Leave must be taken at the end of that entitlement.

There are rules about [when you can take your leave \(/neonatal-care-pay-leave/what-you-get\)](#) and [how to claim \(/neonatal-care-pay-leave/how-to-claim\)](#).

Employment rights when on leave

Your [employment rights \(/employee-rights-when-on-leave\)](#) are protected while on Neonatal Care Leave. This includes your right to:

- pay rises

- build up ('accrue') holiday
- return to work

2. What you can get

You may be entitled to Neonatal Care Leave, Statutory Neonatal Care Pay, or both.

You can get one week's leave for every 7 full and continuous days your baby is in neonatal care.

Neonatal Care Leave

You can get up to 12 weeks' Neonatal Care Leave if you're [classified as an employee \(/employment-status/employee\)](#). It does not matter how long you've been with your employer.

You must take the leave within 68 weeks (just under 16 months) of your baby's birth date.

The [notice period you must give your employer \(/neonatal-care-pay-leave/how-to-claim\)](#) will depend on whether you're taking leave:

- while your baby is in neonatal care, or up to a week after leaving (this is sometimes called 'tier 1')
- more than a week after your baby has left neonatal care (this is sometimes called 'tier 2')

How you take the leave

While your baby is in neonatal care, or up to a week after leaving, you can take leave in separate blocks of at least one week at a time.

After this, you must take leave in a single continuous block.

If you're already taking maternity or adoption leave

If your baby enters neonatal care while you're on Statutory Maternity Leave or Statutory Adoption Leave, you must take your Neonatal Care Leave after your maternity or adoption leave is finished.

Example

Your newborn baby gets sick and has to stay in neonatal care for 56 days. You're already taking Statutory Maternity Leave.

Instead of losing 56 days (8 weeks) of leave, you add the Neonatal Care Leave to the end of your 39 weeks of maternity leave.

If you're taking Shared Parental Leave or Statutory Paternity Leave

You can take Neonatal Care Pay and Leave either:

- before you start Statutory Paternity Leave or Shared Parental Leave
- between blocks of Shared Parental Leave that you booked before your baby started neonatal care (this includes if the Shared Parental Leave is for another child)

If you're using your leave and pay at least one week after your baby leaves neonatal care, you must take all of it in a single block. You can do this before or after your Shared Parental Leave or Statutory Paternity Leave.

Statutory Neonatal Care Pay

If you claim Neonatal Care Leave, you may also be able to claim Statutory Neonatal Care Pay [if you're eligible \(/neonatal-care-pay-leave/check-eligible\)](/neonatal-care-pay-leave/check-eligible).

You'll get either £187.18 a week or 90% of your average weekly earnings (whichever is lower).

Any money you get is paid the same way as your wages, for example weekly or monthly, along with deductions for tax and National Insurance.

If you have more than one baby in neonatal care

If your babies are in neonatal care at the same time (for example, if you have twins), you can only claim Neonatal Care Pay and Leave for one of them, up to a maximum of 12 weeks.

If your babies are in neonatal care at separate times, you'll be able to claim for each of them - up to a maximum of 12 weeks in total.

3. Check if you're eligible

You may be able to get up to 12 weeks' Neonatal Care Pay and Leave if:

- your baby was born on or after 6 April 2025
- your baby spends 7 days or more in a row in neonatal care
- you're the baby's parent or partner of the baby's mother, and have caring responsibility for the baby

- you're taking the leave to care for the baby

You must also meet the eligibility criteria as an employee.

If you or your partner are an adoptive parent

You may be eligible if either:

- the baby has been placed with you
- you have the 'official notification' confirming you're allowed to adopt (if you're adopting a baby from overseas)

If you or your partner had a baby with the help of a surrogate parent

You may be eligible if:

- you're the intended parent and will be responsible for their care
- you'll have a [parental order \(/legal-rights-when-using-surrogates-and-donors/become-the-childs-legal-parent\)](#) within 6 months of the baby's birth date

Neonatal Care Leave

To get Neonatal Care Leave, you must:

- be [classed as an employee \(/employment-status/employee\)](#) - it does not matter how long you've worked for your employer
- be employed in England, Scotland or Wales
- give your [employer notice \(/neonatal-care-pay-leave/how-to-claim\)](#) for Neonatal Care Leave

Statutory Neonatal Care Pay

To get Statutory Neonatal Care Pay, you must have been [continuously employed by your employer \(/continuous-employment-what-it-is\)](#) for at least 26 weeks up to the end of what's called the 'qualifying week'.

If you get Maternity or Paternity Pay, the 'qualifying week' is the 15th week before the baby is due. If you get Statutory Adoption Pay, it's the week you were told you'd been matched with the baby for adoption.

Otherwise, the 'qualifying week' is the week immediately before the baby enters neonatal care.

You must also:

- continue to be employed up to the week before you want the pay to start
- earn on average £125 a week (before tax) or more, over an 8-week period

4. How to claim

You claim Neonatal Care Pay and Leave through your employer. You must take it within 68 weeks (just under 16 months) of your baby's birth date, including if your baby is adopted.

You must give your employer notice before you take Neonatal Care Pay and Leave.

How much notice you must give depends on when you're taking the leave and pay.

If you're taking leave and pay while your baby is in neonatal care (or in the first week after)

This is sometimes called 'tier 1' leave.

You need to tell your employer on the day you want your leave to start, ideally before the time you usually start work or as soon as you can afterwards. You can give notice by phone, voicemail or text message - it does not need to be in writing.

If you need to continue leave and pay for another week, you'll need to let your employer know again. You should do this by the end of the previous week.

If your baby is likely to be in neonatal care for a long time, your employer may agree that you can contact them less frequently.

You need to tell your employer the date your baby leaves neonatal care as soon as possible.

You can give notice to your employer for pay up to 28 days after your leave starts. You must give notice in writing - for example, an email or letter.

If you're taking leave and pay more than a week after your baby has left neonatal care

This is sometimes called 'tier 2' leave.

If you're taking one week of leave and pay, you'll need to tell your employer 15 days before you want your leave and pay to start. If you're taking 2 or more weeks' leave and pay, you'll need to tell them 28 days in advance.

You must give notice in writing - for example, an email or letter.

What you need to tell your employer

To claim neonatal care leave, you need to tell your employer:

- your full name
- your baby's date of birth and, if adopted, the date they were placed with you (or the date they entered into Great Britain if adopted from overseas)
- the start and end date of your baby's neonatal care
- when you want your Neonatal Care Leave to begin
- how many weeks' leave you want to take

For pay and leave, you'll also need to confirm:

- you'll care for the baby during the period you're claiming for
- you're the baby's parent or mother's partner with caring responsibilities for the baby - you'll only need to give this information the first time you claim leave and pay

You can do this by:

- [completing a declaration form \(NEO3\) online](https://www.tax.service.gov.uk/guidance/claim-statutory-neonatal-care-pay/start/about-this-form) (<https://www.tax.service.gov.uk/guidance/claim-statutory-neonatal-care-pay/start/about-this-form>) - you'll need to print this off and post or email it to your employer
- sending an email or letter to your employer
- using your employer's own form (if they have one)

If you have more than one baby in neonatal care

You'll need to provide your employer with information for each baby.

If you disagree with a decision on Neonatal Care Pay

Contact your employer if you disagree with a decision on your claim for Statutory Neonatal Care Pay, for example because you think they:

- are paying you the wrong amount
- have wrongly decided not to pay you statutory pay

If you cannot reach an agreement, you can contact the [Statutory Payments Dispute Team \(/government/organisations/hm-revenue-customs/contact/statutory-payment-dispute-team\)](https://government/organisations/hm-revenue-customs/contact/statutory-payment-dispute-team). You must do this within 6 months of the date of the decision.

5. Cancelling your leave or pay

You may be able to cancel your Neonatal Care Leave or Statutory Neonatal Care Pay depending on when your leave is due to start.

You can rebook your leave and pay if you give your employer the [correct notice \(/neonatal-care-pay-leave/how-to-claim\)](https://neonatal-care-pay-leave/how-to-claim).

You cannot cancel your leave or pay if it was due to start while your baby was still receiving neonatal care (or in the first week after).

If your leave or pay is due to start more than a week after your baby has left neonatal care

To cancel your Neonatal Care Leave or Statutory Neonatal Care Pay, you'll need to give written notice to your employer. When you need to tell them depends on when your leave or pay is due to start.

If you're taking:

- one week's leave - you must let your employer know you want to cancel at least 15 days before the start of the planned leave
- 2 or more weeks' leave - you must let your employer know you want to cancel at least 28 days before the start of the planned leave





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